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21VECV00692 AKHOUNZADEH V KHATIBI

[TENTATIVE] ORDER: Cross-Defendant Shabnam Akhoundzadeh's Motion for Evidentiary Sanctions against Cross-Complainants Faezeh Afchehe, Melica S. Khatibi, and Richard Khatibi is GRANTED.

Cross-Defendant Shabnam Akhoundzadeh's Motion for Monetary Sanctions against Cross-Complainants Faezeh Afchehe, Melica S. Khatibi, and Richard Khatibi and their Counsel, jointly and severally, is GRANTED at the reduced amount of \$3,700.00 payable to the Client Trust Account of SHAFRON & KAMMER, A Limited Liability Partnership, 4764 Park Granada, Suite 210, Calabasas, CA 91302 by 11/21/2025.

Introduction

Cross-Defendant Shabnam Akhoundzadeh (Cross-Defendant) moved for evidentiary sanctions against Cross-Complainants Faezeh Afchehe (Afchehe), Melica S. Khatibi (Melica), and Richard Khatibi (Richard) (collectively, Cross-Complainants) based upon violations of the Court's May 9, 2025 discovery order. Cross-Defendant further requested monetary sanctions against Cross-Complainants and their Counsel in the amount of \$5,005.00.

Opposition was due by October 10, 2025 and none was filed.

Discussion

"A trial court has broad discretion to impose discovery sanctions, but two facts are generally prerequisite to the imposition of nonmonetary sanctions.....: (1) absent unusual circumstances, there must be a failure to comply with a court order, and (2) the failure must be willful." (Biles v. Exxon Mobil Corp. (2004) 124 Cal.App.4th 1315, 1327.) To avoid sanctions, the burden of proving that a discovery violation was not willful is on the party on whom the discovery was served. (Cornwall v. Santa Monica Dairy Co. (1977) 66 Cal.App.3d 250, 252- 253.) The moving party need only show the failure to obey earlier discovery orders. The burden of proof then shifts to the party seeking to avoid sanctions to establish a satisfactory excuse for that party's conduct. (Williams v. Russ (2008) 167 Cal.App.4th 1215, 1227.) Courts may require financial reimbursement for expenses incurred as to misuse of the discovery process. (Code Civ. Proc., sec. 2023.030(a); Deyo v. Kilbourne (1978) 84 Cal.App.3d 771, 789.) Despite assurance from Cross-Complainants that responses would be served, Cross-Defendant submitted that Cross-Complainants failed/refused to comply with the Court's May 9, 2025 Discovery Order requiring initial responses or further responses, as applicable, to: Demand for Supplemental Responses to Interrogatories (DSRI) by Afchehe, Melica, and Richard; Request for Production of Documents (RPD) Set 2 by Afchehe, Melica, and Richard; Special Interrogatories (SI) Set 2 by Afchehe, Melica; SI Set 3 by Richard; Form Interrogatories (FI) Set 4 by Afchehe, Melica and Richard; SI Set 1 by Afchehe and Melica and SI Set 2 by Richard; RPD Set 1 by Afchehe and Melica and RPD Set 2 by

Richard; and FI Set 3 by Afchehe and Melica and Richard. (Kammer Decl. pars. 17-26, Exhs. 49-53, 63 and 64.) Cross-Defendant sufficiently provided Cross-Complainants failure to comply with the Court's discovery order, specifically as to the order to serve further responses. Without any opposition from Cross-Complainants, Cross-Complainants failed to show that their failure to comply was not willful.

For the willful discovery violation, the Court may prohibit the party who disobeyed the court order from introducing designated matters in evidence. (Code Civ. Proc., sec. 2023.030(c); Valencia v. Mendoza (2024) 103 Cal.App.5th 427, 447-448.) A motion for issue or evidentiary sanctions must be accompanied by a separate document setting forth the particular discovery requests at issue, the responses, thereto, and the reasons why such sanction should be imposed. (Cal. Rules of Court, rule 3.1345(a)(7).) Because Cross-Defendant submitted evidence of Cross-Complainants willful disobedience of the Court's Discovery Order and submitted their separate statement showing the discovery demands at issue, Cross-Defendant has shown good cause for the evidentiary sanctions prohibiting Cross-Complainants from introducing evidence related to the discovery demands at issue.

The motion for evidentiary sanctions is GRANTED.

Cross-Complainant Faezeh is prohibited from introducing the following matters into evidence:

Any and all evidence of the dollar amount of attorneys fees Faezeh allegedly incurred as a result of Shabnam Akhoundzadeh filing the Complaint in this action.

Any and all evidence of the dollar amount and nature of the charge, for each of the legal costs of suit Faezeh incurred as a result of Shabnam Akhoundzadeh filing the Complaint in this action.

Any and all evidence as to the type and/or any dollar amount, of each injury for which Faezeh seeks the recovery of damages under her Fifteenth Cause of Action for Malicious Prosecution.

Any and all evidence of the dollar amount and date of occurrence of any loss of income due to an inability to work, for which Faezeh seeks the recovery of damages against Shabnam Akhoundzadeh under the Fifteenth Cause of Action for Malicious Prosecution.

Any and all evidence of how Faezeh lost any income due to an inability to work as a result of a breach of duty Shabnam Akhoundzadeh, for which you seek the recovery of damages against Shabnam Akhoundzadeh under the Fifteenth Cause of Action for Malicious Prosecution.

Any and all evidence of how Faezeh lost any income other than from an inability to work as a result of a breach of duty by Shabnam Akhoundzadeh, for which Faezeh seeks the recovery of damages against Shabnam Akhoundzadeh under the Fifteenth Cause of Action for Malicious Prosecution.

Any and all evidence that Faezeh is legally entitled to recover damages under the Fifteenth Cause of Action for Malicious Prosecution for attorneys fees incurred after the dismissal of the Complaint of Shabnam Akhoundzadeh in this action.

Any and all evidence that Faezeh is legally entitled to recover damages under the Fifteenth Cause of Action for Malicious Prosecution for any injury to real property she allegedly suffered.

Any and all evidence that Faezeh is legally entitled to recover damages under the Fifteenth Cause of Action for Malicious Prosecution for any diminution in the value of the real property located at 18175 Karen Dr. Tarzana, CA 91356 she allegedly suffered.

Any and all evidence that Faezeh is legally entitled to recover damages under the Fifteenth Cause of Action for Malicious Prosecution for costs of suit which she incurred after the dismissal of the Complaint of Shabnam Akhoundzadeh in this action.

Any and all evidence that Faezeh is legally entitled to recover damages under the Fifteenth Cause of Action for Malicious Prosecution for any emotional distress she allegedly suffered after the dismissal of the Complaint of Shabnam Akhoundzadeh in this action.

Any and all evidence that Faezeh suffered damage to reputation as a result of any misconduct by Shabnam Akhoundzadeh for which she seeks recovery under the Fifteenth Cause of Action for Malicious Prosecution.

Any and all evidence that Faezeh and/or Melica suffered damage to reputation as a result of any misconduct by Shabnam Akhoundzadeh for which Faezeh seeks recovery under the Fifteenth Cause of Action for Malicious Prosecution.

Any and all evidence that any expenses Faezeh allegedly paid with respect to the real property located at 18175 Karen Dr., Tarzana, CA 91356 were the result of any misconduct by Shabnam Akhoundzadeh for which Faezeh seek recovery under the Fifteenth Cause of Action for Malicious Prosecution.

Any and all documentary evidence pertaining to Faezeh's claim of damages against Shabnam Akhoundzadeh under the Fifteenth Cause of Action for Malicious Prosecution.

Any and all billings for attorneys fees and/or costs of suit supporting Faezeh's claim of damages against Shabnam Akhoundzadeh under the Fifteenth Cause of Action for Malicious Prosecution.

Any and all documentary evidence pertaining to any emotional distress for which Faezeh seeks the recovery of damages against Shabnam Akhoundzadeh under the Fifteenth Cause of Action for Malicious Prosecution.

Any and all documentary evidence pertaining to any medical condition for which Faezeh seeks the recovery of damages against Shabnam Akhoundzadeh under the Fifteenth Cause of Action for Malicious Prosecution.

Any and all documentary evidence pertaining to any injury to real property for which Faezeh seeks the recovery of damages against Shabnam Akhoundzadeh under the Fifteenth Cause of Action for Malicious Prosecution.

Any and all documentary evidence pertaining to any loss of earning capacity for which Faezeh seeks the recovery of damages against Shabnam Akhoundzadeh under the Fifteenth Cause of Action for Malicious Prosecution.

Any and all documentary evidence pertaining to damages Faezeh contends she is entitled to recover in this action as a result of any alleged wrongful conduct by Cross-Defendant Shabnam Akhoundzadeh.

Any and all evidence that Shabnam Akhoundzadeh did not have probable cause to file the Verified Complaint she filed in this action on or about May 24, 2021.

Any and all evidence that the dismissal of the Verified Complaint filed in this action on or about May 24, 2021 was a legal termination in Faezeh's favor on the merits reflecting Melica Khatibi's innocence of the misconduct alleged in that Verified Complaint.

Any and all evidence that the dismissal of the Verified Complaint filed in this action on or about May 24, 2021 was a legal termination in Faezeh's favor on the merits.

Any and all evidence that the Verified Complaint filed in this action on or about May 24, 2021 was filed by Shabnam Akhoundzadeh with malice.

Any and all evidence that Shabnam Akhoundzadeh did not rely upon advice of counsel in determining to file the Verified Complaint in this action.

Cross-Complainant Melica is prohibited from introducing the following matters into evidence:

Any and all evidence of the dollar amount of attorneys fees Melica allegedly incurred as a result of Shabnam Akhoundzadeh filing the Complaint in this action.

Any and all evidence of the dollar amount and nature of the charge, for each of the legal costs of suit Melica incurred as a result of Shabnam Akhoundzadeh filing the Complaint in this action.

Any and all evidence as to the type and/or any dollar amount, of each injury for which Melica seeks the recovery of damages under her Fifteenth Cause of Action for Malicious Prosecution.

Any and all evidence of the dollar amount and date of occurrence of any loss of income due to an inability to work, for which Melica seeks the recovery of damages against Shabnam Akhoundzadeh under the Fifteenth Cause of Action for Malicious Prosecution.

Any and all evidence of how Melica lost any income due to an inability to work as a result of a breach of duty Shabnam Akhoundzadeh, for which you seek the recovery of damages against Shabnam Akhoundzadeh under the Fifteenth Cause of Action for Malicious Prosecution.

Any and all evidence of how Melica lost any income other than from an inability to work as a result of a breach of duty by Shabnam Akhoundzadeh, for which Melica seeks the recovery of damages against Shabnam Akhoundzadeh under the Fifteenth Cause of Action for Malicious Prosecution.

Any and all evidence that Melica is legally entitled to recover damages under the Fifteenth Cause of Action for Malicious Prosecution for attorneys fees incurred after the dismissal of the Complaint of Shabnam Akhoundzadeh in this action.

Any and all evidence that Melica is legally entitled to recover damages under the Fifteenth Cause of Action for Malicious Prosecution for any injury to real property she allegedly suffered.

Any and all evidence that Melica is legally entitled to recover damages under the Fifteenth Cause of Action for Malicious Prosecution for any diminution in the value of the real property located at 18175 Karen Dr. Tarzana, CA 91356 she allegedly suffered.

Any and all evidence that Melica is legally entitled to recover damages under the Fifteenth Cause of Action for Malicious Prosecution for costs of suit which she incurred after the dismissal of the Complaint of Shabnam Akhoundzadeh in this action.

Any and all evidence that Melica is legally entitled to recover damages under the Fifteenth Cause of Action for Malicious Prosecution for any emotional distress she allegedly suffered after the dismissal of the Complaint of Shabnam Akhoundzadeh in this action.

Any and all evidence that Melica suffered damage to reputation as a result of any misconduct by Shabnam Akhoundzadeh for which she seeks recovery under the Fifteenth Cause of Action for Malicious Prosecution.

Any and all evidence that Melica and/or Melica suffered damage to reputation as a result of any misconduct by Shabnam Akhoundzadeh for which Melica seeks recovery under the Fifteenth Cause of Action for Malicious Prosecution.

Any and all evidence that any expenses Melica allegedly paid with respect to the real property located at 18175 Karen Dr., Tarzana, CA 91356 were the result of any misconduct by Shabnam Akhoundzadeh for which Melica seek recovery under the Fifteenth Cause of Action for Malicious Prosecution.

Any and all documentary evidence pertaining to Melica's claim of damages against Shabnam Akhoundzadeh under the Fifteenth Cause of Action for Malicious Prosecution.

Any and all billings for attorneys fees and/or costs of suit supporting Melica's claim of damages against Shabnam Akhoundzadeh under the Fifteenth Cause of Action for Malicious Prosecution.

Any and all documentary evidence pertaining to any emotional distress for which Melica seeks the recovery of damages against Shabnam Akhoundzadeh under the Fifteenth Cause of Action for Malicious Prosecution.

Any and all documentary evidence pertaining to any medical condition for which Melica seeks the recovery of damages against Shabnam Akhoundzadeh under the Fifteenth Cause of Action for Malicious Prosecution.

Any and all documentary evidence pertaining to any injury to real property for which Melica seeks the recovery of damages against Shabnam Akhoundzadeh under the Fifteenth Cause of Action for Malicious Prosecution.

Any and all documentary evidence pertaining to any loss of earning capacity for which Melica seeks the recovery of damages against Shabnam Akhoundzadeh under the Fifteenth Cause of Action for Malicious Prosecution.

Any and all documentary evidence pertaining to damages Melica contends she is entitled to recover in this action as a result of any alleged wrongful conduct by Cross-Defendant Shabnam Akhoundzadeh.

Any and all evidence that Shabnam Akhoundzadeh did not have probable cause to file the Verified Complaint she filed in this action on or about May 24, 2021.

Any and all evidence that the dismissal of the Verified Complaint filed in this action on or about May 24, 2021 was a legal termination in Melica's favor on the merits reflecting Melica's innocence of the misconduct alleged in that Verified Complaint.

Any and all evidence that the dismissal of the Verified Complaint filed in this action on or about May 24, 2021 was a legal termination in Melica's favor on the merits.

Any and all evidence that the Verified Complaint filed in this action on or about May 24, 2021 was filed by Shabnam Akhoundzadeh with malice.

Any and all evidence that Shabnam Akhoundzadeh did not rely upon advice of counsel in determining to file the Verified Complaint in this action.

Cross-Complainant Richard is prohibited from introducing the following matters into evidence:

Any and all evidence of the nature of and/or dollar amount of legal services of each of the legal services Richard allegedly incurred as a result of Shabnam Akhoundzadeh filing her Complaints in this action.

Any and all evidence of the type and/or dollar amount of each alleged injury for which Richard seeks the recovery of damages under the Fifteenth Cause of Action for Malicious Prosecution.

Any and all evidence as to how any alleged loss of any income due to an inability to work, for which Richard seeks the recovery of damages against Shabnam Akhoundzadeh under the Fifteenth Cause of Action for Malicious Prosecution resulted from a breach of duty by her.

Any and all evidence as to the dates and/or dollar amount of any alleged loss of income other than from an inability to work, for which Richard seeks the recovery of damages against Shabnam Akhoundzadeh under the Fifteenth Cause of Action for Malicious Prosecution

Any and all evidence as to how Richard's alleged lost any income other than from an inability to work, for which he seeks the recovery of damages resulted from a breach of duty by Shabnam Akhoundzadeh.

Any and all documentary evidence pertaining to Richard's claim of damages against Shabnam Akhoundzadeh under the Fifteenth Cause of Action for Malicious Prosecution other than Medical Records produced as SHABNAM 1 & 2 PRODUCTION - 001927-001957.

Any and all billings for attorneys fees and/or costs of suit allegedly supporting Richard's claim of damages against Shabnam Akhoundzadeh under the Fifteenth Cause of Action for Malicious Prosecution.

Any and all documentary evidence pertaining to any emotional distress for which Richard seeks the recovery of damages against Shabnam Akhoundzadeh under the Fifteenth Cause of Action for Malicious Prosecution other than Medical Records produced as SHABNAM 1 & 2 PRODUCTION - 001927-001957.

Any and all documentary evidence pertaining to any medical condition for which Richard seeks the recovery of damages against Shabnam Akhoundzadeh under the Fifteenth Cause of Action for Malicious Prosecution other than medical records produced as SHABNAM 1 & 2 PRODUCTION - 001927-001957.

Any and all documentary evidence pertaining to any alleged injury to real property for which Richard seeks the recovery of damages against Shabnam Akhoundzadeh under the Fifteenth Cause of Action for Malicious Prosecution.

Any and all documentary evidence pertaining to any alleged diminution of value of real property for which Richard seeks the recovery of damages against Shabnam Akhoundzadeh under the Fifteenth Cause of Action for Malicious Prosecution.

Any and all documentary evidence pertaining to any loss of earning capacity for which Richard seeks the recovery of damages against Shabnam Akhoundzadeh under the Fifteenth Cause of Action for Malicious Prosecution other than medical records produced as SHABNAM 1 & 2 PRODUCTION - 001927-001957 .

Any and all documentary evidence pertaining to any alleged loss of income for which Richard seek the recovery of damages against Shabnam Akhoundzadeh under the Fifteenth Cause of Action for Malicious Prosecution other than medical records produced as SHABNAM 1 & 2 PRODUCTION - 001927-001957.

Any and all documentary evidence identified in any discovery responses of Richard pertaining to any loss of income for which Faezeh and/or Melica seek the recovery of damages against Shabnam Akhoundzadeh under the Fifteenth Cause of Action for Malicious Prosecution of your Fourth Amended Cross-Complaint in this action.

Any and all documentary evidence pertaining to alleged damages Richard contends he is entitled to recover in this action as a result of any alleged wrongful conduct by Cross-Defendant Shabnam Akhoundzadeh other than medical records produced as SHABNAM 1 & 2 PRODUCTION - 001927-001957.

Any and all documents evidencing any damages Richard contends he is entitled to recover in this action as a result of any alleged wrongful conduct by Cross-Defendant Shabnam Akhoundzadeh other than medical records produced as SHABNAM 1 & 2 PRODUCTION - 001927-001957.

Any and all evidence as to why Shabnam Akhoundzadeh was allegedly not legally justified in filing the Complaint in this action against Richard.

Any and all evidence that Richard is legally entitled to recover damages for attorneys fees which were allegedly incurred after the dismissal of the Complaint of Shabnam Akhoundzadeh in this action.

Any and all evidence that Richard is legally entitled to recover damages under the Fifteenth Cause of Action for Malicious Prosecution for any injury to real property he allegedly suffered.

Any and all evidence that Richard is legally entitled to recover damages under the Fifteenth Cause of Action for Malicious Prosecution for any diminution in the value of the real property located at 18175 Karen Dr., Tarzana, CA 91356 he allegedly suffered.

Any and all evidence that Richard is legally entitled to recover damages under the Fifteenth Cause of Action for Malicious Prosecution for costs of suit which he alleged incurred after the dismissal of the Complaint of Shabnam Akhoundzadeh in this action.

Any and all evidence that Richard is legally entitled to recover damages under the Fifteenth Cause of Action for Malicious Prosecution for any emotional distress he allegedly suffered after the dismissal of the Complaint of Shabnam Akhoundzadeh in this action.

Any and all evidence that Richard suffered damage to reputation as a result of any misconduct by Shabnam Akhoundzadeh for which he seeks recovery under the Fifteenth Cause of Action for Malicious Prosecution.

Any and all evidence of any expenses that Richard allegedly incurred with respect to the real property located at 18175 Karen Dr., Tarzana, CA 91356 were the result of any misconduct by Shabnam Akhoundzadeh for which he seeks recovery under the Fifteenth Cause of Action for Malicious Prosecution.

Any and all evidence that any expenses Richard allegedly paid with respect to the real property located at 18175 Karen Dr., Tarzana, CA 91356 were the result of any misconduct by Shabnam Akhoundzadeh for which he seek recovery under the Fifteenth Cause of Action for Malicious Prosecution.

Any and all evidence that Richard was prescribed Escitalopram as a result of any wrongful conduct by Shabnam Akhoundzadeh upon which he bases the Fifteenth Cause of Action for Malicious Prosecution.

Any and all evidence that the dosage of Escitalopram Richard was allegedly prescribed was changed as a result of any conduct by Shabnam Akhoundzadeh upon which you base the Fifteenth Cause of Action for Malicious Prosecution.

Any and all evidence that Richard was prescribed Rosuvastatin as a result of any conduct by Shabnam Akhoundzadeh upon which he bases the Fifteenth Cause of Action for Malicious Prosecution.

Any and all evidence that the dosage of Escitalopram Richard was allegedly prescribed was changed as a result of any conduct by Shabnam Akhoundzadeh upon which he bases the Fifteenth Cause of Action for Malicious Prosecution.

Any and all evidence that Richard produced any medical records which evidence he suffered any emotional distress for which he would be legally entitled to recover damages under the Fifteenth Cause of Action for Malicious Prosecution.

Any and all evidence that Richard suffered any monetary loss as a result of any loss of earning capacity for which he seeks recovery under the Fifteenth Cause of Action for Malicious Prosecution.

As for Cross-Defendant's request for monetary sanctions for the above misuse of discovery, the Court finds the amount requested to be excessive and unreasonable because the time expended on the matter is excessive based upon Attorney Kevin Kammer's extensive experience as an attorney. The Court finds that Mr. Kammer's hourly rate of \$430.00 to be reasonable. The Court reduces the monetary sanctions to \$3,700.00.

The motion for monetary sanctions against Cross-Complainants and Counsel is GRANTED at the reduced amount of \$3,700.00.

IT IS SO ORDERED, CLERK TO GIVE NOTICE.